



Notification Waiver Determination

Australian Venue Co – assets of Café Kinetic, Flinders Lane Melbourne CBD

Acquisition	AVC Operations Pty Ltd (AVC), a subsidiary of Australian Venue Co. Holdings Limited, applied for a notification waiver in respect of its proposed acquisition of substantially all of the assets of the licensed premises trading as Café Kinetic, as described in the transaction documents provided as part of the application (the Acquisition).
Determination	The Australian Competition and Consumer Commission has determined under section 51ABV(1)(a) of the <i>Competition and Consumer Act 2010</i> (Cth) that the Acquisition is not required to be notified.
Date of determination	7 July 2026

Parties to the Acquisition	The acquirer, AVC, operates over 200 licensed venues throughout Australia and New Zealand, primarily pubs, as well as some bars, clubs and licensed restaurants. AVC's venues are individually branded and are mostly located in inner-city and metro areas, offering a range of products and services including food, alcoholic and non-alcoholic beverages, function rooms, live entertainment and gaming facilities. The target, Café Kinetic, is a contemporary licensed café/restaurant business, with an indoor and outdoor seating area, located at 103 Flinders Lane, Melbourne VIC 3000. The business assets of Café Kinetic are currently owned and operated by a partnership subsisting between LOFISKO PTY LTD as trustee for the STAN MIHAILIDIS FAMILY TRUST and BLACK TREE GROUP PTY LTD as trustee for the BLACK TREE TRUST. The parties both supply retail hospitality services in metropolitan Melbourne. AVC operates several venues in the nearby area, including Garden State Hotel, Death & Co Melbourne, The Duke of Wellington, and Morris House, among others.
Explanation for determination	In making this notification waiver determination, the Australian Competition and Consumer Commission (the ACCC) has considered the information provided with the notification waiver application and had regard to the factors in section 51ABV(2)(b) of the <i>Competition and Consumer Act 2010</i> (Cth) (the Act). Based on the information currently before it, the ACCC considers that the Acquisition is unlikely to give rise to any material lessening of competition. In particular: the increase in AVC's share of the supply of dining and liquor for on-site consumption in the local area surrounding Café Kinetic (at pub, restaurant and café style venues) arising from the Acquisition would be small

	b. there are numerous alternative suppliers of dining and liquor for on-site consumption (including pub, restaurant and café style venues) in the local area surrounding Café Kinetic and the broader Melbourne metropolitan area. The ACCC has also had regard to the likelihood that, if the Acquisition were put into effect, the notification thresholds determined under section 51ABP(1) of the Act would apply. While the ACCC considers that the notification thresholds are likely to be met, given that material competition concerns are unlikely to arise, the ACCC has determined that the Acquisition is not required to be notified. The ACCC considers that the determination is consistent with the object of the Act and the interests of consumers in promoting competition. For more information about the ACCC's approach to considering notification waiver applications and to assessing competition effects more generally, see the ACCC's interim guidance on notification waivers and merger assessment guidelines.
--	--

**Determination made by Commissioner Williams pursuant to a delegation under section 25(1)
of the Act**